

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-2008- 575**

**08 SEP 2008**  
DISTRICT COURT  
BALDWIN COUNTY, AL  
FILED

**JIL WALKER,**

**Plaintiff,**

**v.**

**SEP 04 2008**  
JODY W. CAMPBELL  
CIRCUIT CLERK  
FAIRHOPE

**CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C, the person, firm or corporation who employed Defendant, ANTHONY KENNON, A, B, and/or C, at the times and places set forth in the Complaint; all of whose names and legal identities are unknown to the Plaintiff at this time but will be substituted by amendment when ascertained, separately and severally,**

**Defendants.**

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**COMPLAINT**

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**FACTS**

The Plaintiff, JIL WALKER, alleges against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C as follows:

1. In February of 2005, the Plaintiff Jil Walker worked for the City of Orange Beach on its Planning Commission and Defendant Anthony Kennon worked for the City of Orange Beach as a Councilman.
2. On a city planning retreat to the Mississippi Gulf Coast, Defendant Anthony Kennon solicited Jil Walker to have sexual intercourse in exchange for his enhancing her career with his political and business connections.
3. After Plaintiff Jil Walker reported this conduct to the City of Orange Beach, all three of the interested parties (Plaintiff Jil Walker, Defendant Anthony

Kennon, and Defendant City of Orange Beach), entered into a settlement agreement in June of 2005.

4. This settlement agreement included a non-disparagement agreement, a non-disclosure agreement, and a confidentiality agreement binding all parties to its terms.

5. In July of 2008, Defendant Anthony Kennon stated to a Mobile Press Register reporter that the Plaintiff Jil Walker pressured and/or offered him a bribe to support the Harbortown Development proposal in Orange Beach and that Plaintiff Jil Walker had "an axe to grind" because of his opposition to that same development proposal. These statements were published in the Mobile Press Register on July 15, 2008.

6. On July 22, 2008, at a public forum in Orange Beach, City of Orange Beach Councilman Ed Carroll stated that Plaintiff Jil Walker's complaints of sexual harassment were untruthful.

7. On July 22, 2008, at the City of Orange Beach public forum, Defendant Anthony Kennon stated that Plaintiff Jil Walker's complaints of sexual harassment were untruthful.

8. On August 21, 2008, Defendant Anthony Kennon testified in the Circuit Court of Baldwin County and told news reporters that Plaintiff Jil Walker attempted to bribe him to support certain City of Orange Beach development proposals and that Plaintiff Jil Walker's claims for sexual harassment were

fabricated.

**FIRST CAUSE OF ACTION**

**BREACH OF CONTRACT**

COMES NOW the Plaintiff in the above styled cause and alleges against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C, as follows:

1. Plaintiff adopts and incorporates by reference the allegations contained in the Facts section above and realleges the same as if fully set out herein.

2. By and through Defendant Anthony Kennon's statements to the Mobile Press Register in July of 2008, to the audience of the public forum on July 22, 2008, and to the Circuit Court audience and news reporters on August 21, 2008, Defendants Anthony Kennon and the City of Orange Beach breached the non-disparagement, non-disclosure, and confidentiality agreements in the "Settlement and Release Agreement" entered into in June of 2005.

3. On July 22, 2008, Defendant City of Orange Beach, by and through its Councilman Ed Carroll's statements at the City of Orange Beach public forum breached the non-disparagement, non-disclosure, and confidentiality agreements in the "Settlement and Release Agreement" entered into in June of 2005.

4. As a proximate result of Defendants actions, Plaintiff Jil Walker has

suffered damages including damages to her reputation, her livelihood, and emotional distress. Plaintiff Jil Walker has suffered, continues to suffer and will suffer into the future the aforementioned damages.

5. WHEREFORE, the Plaintiff, JIL WALKER, requests a declaratory judgment by this Court that the aforementioned breach acted as a rescission of the "Settlement and Release Agreement" and that the time for filing an action based on all of the underlying complaints and claims made against the City of Orange Beach, and Anthony Kennon subject to the "Settlement and Release Agreement" were thereby tolled from the time of the inception of the agreement to the time of rescission. The Plaintiff demands compensatory damages against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C plus interest. Pursuant to the specific terms of the agreement, Plaintiff Jil Walker also claims reasonable attorney's fees and costs.

## **SECOND CAUSE OF ACTION**

### **INVASION OF PRIVACY**

COMES NOW the Plaintiff in the above styled cause and alleges against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C, as follows:

1. Plaintiff adopts and incorporates by reference the allegations contained in the Facts section and the First Cause of Action above and realleges the same as if fully set out herein.

2. The conduct of the Defendants described herein constitutes a wrongful intrusion and an invasion of the Plaintiff's privacy. As a proximate consequence of the above described conduct of the Defendants, Plaintiff has suffered great mental and emotional distress which continues today and is expected to continue in the future; and her ability to earn a livelihood has been damaged.

3. WHEREFORE, the Plaintiff, JIL WALKER, demands compensatory damages and punitive damages, plus interest and costs, against Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C.

### **THIRD CAUSE OF ACTION**

#### **DEFAMATION**

COMES NOW the Plaintiff in the above styled cause and alleges against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C, as follows:

1. Plaintiff adopts and incorporates by reference the allegations contained in the Facts section and the First and Second Causes of Action above and realleges the same as if fully set out herein.

2. The conduct of the Defendants described herein constitutes defamation of the Plaintiff. As a proximate consequence of the above described conduct of the Defendants, Plaintiff has suffered great mental and emotional distress which continues today and is expected to continue in the future; her reputation has been damaged and her ability to earn a livelihood has been

damaged.

3. The aforementioned statements made by the Defendants were made with malice.

4. WHEREFORE, the Plaintiff, JIL WALKER, demands compensatory damages and punitive damages, plus interest and costs, against Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C.

#### **FOURTH CAUSE OF ACTION**

##### **OUTRAGE**

COMES NOW the Plaintiff in the above styled cause and alleges against the Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C, as follows:

1. Plaintiff adopts and incorporates by reference the allegations contained in the Facts section and the First, Second and Third Causes of Action above and realleges the same as if fully set out herein.

2. The City of Orange Beach is vicariously liable for the actions of its Councilman (now Mayor) Anthony Kennon.

3. The Defendant's actions were intended to inflict emotional distress or, in the alternative, Defendants knew or should have known that emotional distress was the likely result of its/his conduct.

4. Defendant's aforementioned conduct was extreme and outrageous.

5. As a proximate result of the extreme and outrageous conduct of the

Defendants, the Plaintiff was caused to suffer severe emotional distress which continues today and is expected to continue in the future.

6. WHEREFORE, the Plaintiff, JIL WALKER, demands compensatory damages and punitive damages, plus interest and costs, against Defendants, CITY OF ORANGE BEACH, ANTHONY KENNON, A, B, and/or C.

### **FIFTH CAUSE OF ACTION**

#### **SOLICITATION**

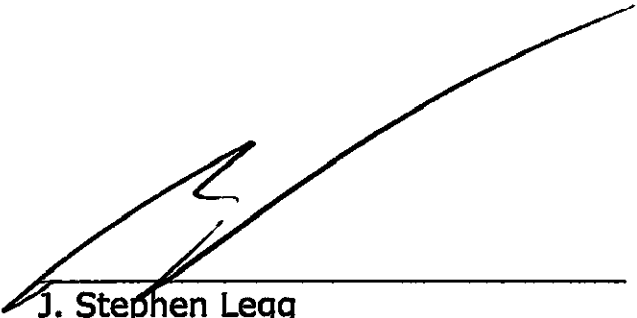
COMES NOW the Plaintiff in the above styled cause and alleges against the Defendant, ANTHONY KENNON, as follows:

1. Plaintiff adopts and incorporates by reference the allegations contained in the Facts section and the First, Second, Third and Fourth Causes of Action above and realleges the same as if fully set out herein.

2. The actions of Defendant Anthony Kennon constitute solicitation in violation of 1975 Code of Alabama § 13A-12-121(b).

3. As a proximate result of the extreme and outrageous conduct of the Defendant, the Plaintiff was caused to suffer severe emotional distress which continues today and is expected to continue in the future.

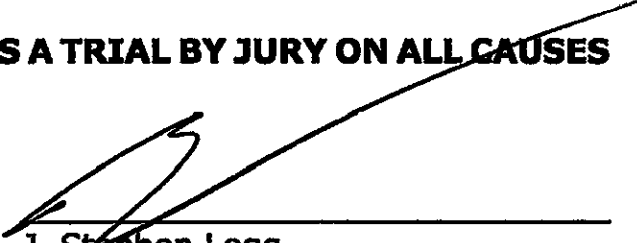
4. WHEREFORE, the Plaintiff, JIL WALKER, demands compensatory damages and punitive damages, plus interest and costs, against Defendant, ANTHONY KENNON.



---

J. Stephen Legg  
Legg & Meador  
202 South Royal Street  
Mobile, Alabama 36602  
Telephone: (251) 706-1001  
Fax: (251) 706-1002  
LEG003  
[jsl@leggandmeador.com](mailto:jsl@leggandmeador.com)

**PLAINTIFF RESPECTFULLY REQUESTS A TRIAL BY JURY ON ALL CAUSES OF ACTION**



---

J. Stephen Legg

Defendants may be served by **CERTIFIED MAIL** at the following addresses:

**CITY OF ORANGE BEACH**  
**c/o Renee Smith, as Legal Administrator**  
**Post Office Box 458**  
**Orange Beach, AL 36561**

**ANTHONY KENNON**  
**c/o City of Orange Beach**  
**Post Office Box 458**  
**Orange Beach, AL 36561**



**NOTICE OF DISCOVERY**

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA  
CIVIL ACTION NO.: CV-2008- 515**

**JIL WALKER,                      TO: CITY OF ORANGE BEACH  
                                            c/o RENEE SMITH, as Legal Administrator  
                                            POST OFFICE BOX 458  
                                            ORANGE BEACH, AL 36561**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al,  
  
Defendants.**

PLEASE TAKE NOTICE That in the following stated cause pending in our Circuit Court of Baldwin County, J. STEPHEN LEGG, Esquire, has filed:

**INTERROGATORIES  
REQUEST FOR PRODUCTION  
NOTICE OF DEPOSITION**

THE DEFENDANT IS REQUIRED TO RESPOND TO THE ABOVE LISTED DISCOVERY WITHIN 45 DAYS AFTER SERVICE OF THIS NOTICE.

WITNESS: JODY WISE CAMPBELL, CLERK, THIS THE \_\_\_\_\_ DAY OF \_\_\_\_\_, 2008.

JODY WISE CAMPBELL, CLERK  
BALDWIN COUNTY CIRCUIT COURT  
312 COURTHOUSE SQUARE, SUITE 10  
BAY MINETTE, AL 36507

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-2008- 575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al**

**Defendants.**

**08 SEP 2008**  
 DISTRICT COURT  
 BALDWIN COUNTY, AL  
 FILED  
**SEP 04 2008**  
 JODY W. CAMPBELL  
 CIRCUIT CLERK  
 FAIRHOPE

---

**PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT,  
 CITY OF ORANGE BEACH**

---

COMES NOW the Plaintiff in the above cause and, pursuant to Rule 33 of the Alabama Rules of Civil Procedure, propound to the Defendant the following interrogatories to be answered and responded to within the time required by law.

You are reminded that under the provisions of Rule 26 (e), you are under a duty to reasonably supplement your response with respect to any question directly addressed to (a) the identity and location of persons having knowledge of discoverable matters, and (b) the identity of each person expected to be called as an expert witness at trial, the subject matter on which he/she expects to testify, and the substance of this testimony.

You are under a duty to reasonably amend a prior response if you obtain information upon the basis of which (a) you know that the response was incorrect when made, or (b) you know that the response, though correct when

made, is no longer true, and the circumstances are such that a failure to amend the response is, in substance, a knowing concealment.

1. Is the Defendant correctly named in this lawsuit? If not, please state the correct name.

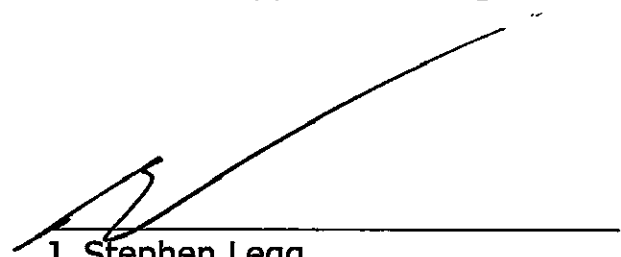
2. Do you have liability insurance which will or may cover your liability for any of the stated claims? If so, please state the names and addresses of any and all insurance companies which furnished you with liability insurance coverage, the policy number and the limits of each such policy.

3. Please name and identify each person whom you expect to call as an expert witness at the trial of this cause, giving the address of each such person and a list of his/her educational background and experience which you claim qualifies him as an expert, the subject matter on which each expert is expected to testify, and the substance of the facts and opinions to which the expert is expected to testify and a summary of the grounds for each opinion held by each expert.

4. If you allege that Jil Walker has breached any of the terms of the settlement agreement reached in June of 2006, please state specifically your allegations of breach and all of the facts surrounding the same, and please produce any and all documents or other tangible evidence which support this allegation.

5. If you allege that Jil Walker has made any defamatory statements which have damaged you, please state specifically your allegations of

defamation and all of the facts surrounding the same, and please produce any and all documents or other tangible evidence which support this allegation.

A handwritten signature in black ink, appearing to read 'J. Stephen Legg', is written over a horizontal line.

J. Stephen Legg  
Legg & Meador  
202 South Royal Street  
Mobile, Alabama 36602  
Telephone: (251) 706-1001  
Fax: (251) 706-1002  
LEG003  
[jsl@leggandmeador.com](mailto:jsl@leggandmeador.com)

**TO BE SERVED WITH COMPLAINT.**

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-2008-575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al**

**Defendants.**

**08 SEP 2008**

DISTRICT COURT  
BALDWIN COUNTY, AL  
FILED

**SEP 04 2008**

JODY W. CAMPBELL  
CIRCUIT CLERK  
FAIRHOPE

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**PLAINTIFF'S FIRST REQUEST FOR PRODUCTION TO DEFENDANT,  
CITY OF ORANGE BEACH**

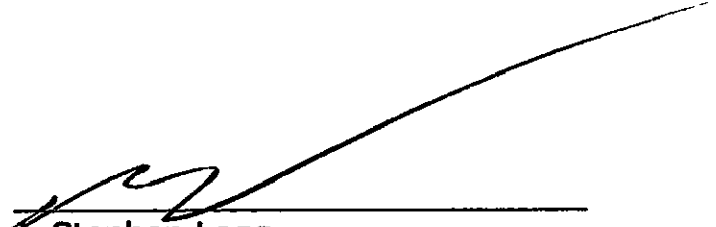
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COMES NOW the Plaintiff in the above styled cause and requests the Defendant, City of Orange Beach, produce the originals or true and complete copies of the following documents and things in accordance with Rule 34 of the Alabama Rules of Civil Procedure (NOTE: "will be made available" does us no good, please send all responsive documents with your responses):

1. Any and all reports, correspondence, letters, field notes, memoranda, notes, computer notes, medical records, office notes, etc., used or prepared by any expert being called by or on behalf of the Defendant.
2. The complete investigative file originally maintained by the City of Orange Beach, which investigation related to the allegations made by Jil Walker against Anthony Kennon of, among other things, sexual harassment.
3. The complete investigative file originally maintained by the City of Orange Beach, which investigation related to the allegations made by Cherie

Stobert against Anthony Kennon of, among other things, sexual harassment.

4. Please produce originals or true and complete copies of any and all Insurance policies, primary and excess, under which any Insurance carrier may be liable to satisfy part or all of any judgment which may be entered against you in this action. Pursuant to *Ex parte Badham*, 730 So.2d 135,138 (Ala. 1999). **This request specifically seeks copies of the entire policy or policies including any and all references to policy limits.**



---

J. Stephen Legg  
Legg & Meador  
202 South Royal Street  
Mobile, Alabama 36602  
Telephone: (251) 706-1001  
Fax: (251) 706-1002  
LEG003  
[jsl@leggandmeador.com](mailto:jsl@leggandmeador.com)

**TO BE SERVED WITH COMPLAINT.**

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-08- 575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al,**

**Defendants.**

**08 SEP 2008**  
DISTRICT COURT  
BALDWIN COUNTY, AL  
FILED

**SEP 04 2008**  
JODY W. CAMPBELL  
CIRCUIT CLERK  
FAIRHOPE

---

**NOTICE OF DEPOSITION**

---

**TO:**

Renee Smith, Legal Administrator  
City of Orange Beach  
Post Office Box 458  
Orange Beach, AL 36561  
(251) 981-1126 Fax

Lois Robinson & Associates, Inc.  
Post Office Box 66604  
Mobile, AL 36660  
(251) 479-1874 Fax

**DEPONENT:** Ed Carroll

**TIME:** T.B.A.

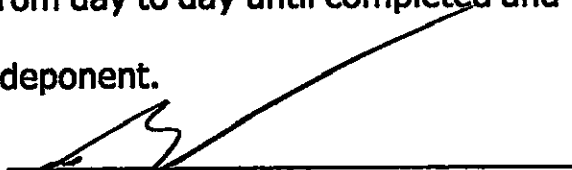
**DATE:** T.B.A.

**LOCATION:** Legg & Meador  
202 South Royal Street  
Mobile, AL 36602

Please take notice that J. STEPHEN LEGG, attorney for Plaintiff, will take the deposition of the deponent named at the time, date and location indicated

above upon oral examination pursuant to the Alabama Rules of Civil Procedure before an officer authorized to take depositions and swear witnesses in the State of Alabama.

The deposition will continue from day to day until completed and you are invited to attend and examine the deponent.



---

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**TO BE SERVED WITH COMPLAINT.**



**NOTICE OF DISCOVERY**

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA  
CIVIL ACTION NO.: CV-2008- 575**

**JIL WALKER,  
Plaintiff,**

**TO: ANTHONY KENNON  
c/o CITY OF ORANGE BEACH  
POST OFFICE BOX 458  
ORANGE BEACH, AL 36561**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al,  
Defendants.**

PLEASE TAKE NOTICE That in the following stated cause pending in our Circuit Court of Baldwin County, J. STEPHEN LEGG, Esquire, has filed:

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NOTICE OF DEPOSITION**

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WITNESS: JODY WISE CAMPBELL, CLERK, THIS THE \_\_\_\_\_ DAY OF \_\_\_\_\_, 2008.

JODY WISE CAMPBELL, CLERK  
BALDWIN COUNTY CIRCUIT COURT  
312 COURTHOUSE SQUARE, SUITE 10  
BAY MINETTE, AL 36507

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-2008- 575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al**

**Defendants.**

**08 SEP 2008**  
DISTRICT COURT  
BALDWIN COUNTY, AL  
FILED

**SEP 04 2008**  
JODY W. CAMPBELL  
CIRCUIT CLERK  
FAIRHOPE

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**PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT,  
ANTHONY KENNON**

---

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You are reminded that under the provisions of Rule 26 (e), you are under a duty to reasonably supplement your response with respect to any question directly addressed to (a) the identity and location of persons having knowledge of discoverable matters, and (b) the identity of each person expected to be called as an expert witness at trial, the subject matter on which he/she expects to testify, and the substance of this testimony.

You are under a duty to reasonably amend a prior response if you obtain information upon the basis of which (a) you know that the response was incorrect when made, or (b) you know that the response, though correct when

made, is no longer true, and the circumstances are such that a failure to amend the response is, in substance, a knowing concealment.

1. Is the Defendant correctly named in this lawsuit? If not, please state the correct name.

2. Do you have liability insurance which will or may cover your liability for any of the stated claims? If so, please state the names and addresses of any and all insurance companies which furnished you with liability insurance coverage, the policy number and the limits of each such policy.

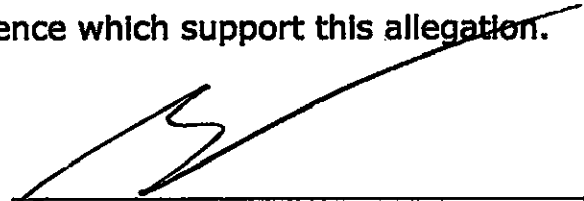
3. Please name and identify each person whom you expect to call as an expert witness at the trial of this cause, giving the address of each such person and a list of his/her educational background and experience which you claim qualifies him as an expert, the subject matter on which each expert is expected to testify, and the substance of the facts and opinions to which the expert is expected to testify and a summary of the grounds for each opinion held by each expert.

4. You have stated publicly that Jil Walker offered you a bribe. Please describe in detail your allegation that Jil Walker, at any time, offered you a bribe, and produce any documents or other tangible evidence which support this allegation.

5. If you allege that Jil Walker has breached any of the terms of the settlement agreement reached in June of 2006, please state specifically your allegations of breach and all of the facts surrounding the same, and please

produce any and all documents or other tangible evidence which support this allegation.

6. If you allege that Jill Walker has made any defamatory statements which have damaged you, please state specifically your allegations of defamation and all of the facts surrounding the same, and please produce any and all documents or other tangible evidence which support this allegation.



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**CIVIL ACTION NO.: CV-2008- 575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al**

**Defendants.**

**08 SEP 2008**  
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**PLAINTIFF'S FIRST REQUEST FOR PRODUCTION TO DEFENDANT,  
 ANTHONY KENNON**

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1. Any and all reports, correspondence, letters, field notes, memoranda, notes, computer notes, medical records, office notes, etc., used or prepared by any expert being called by or on behalf of the Defendant.
2. The complete investigative file originally maintained by the City of Orange Beach, which investigation related to the allegations made by Jil Walker against Anthony Kennon of, among other things, sexual harassment.
3. The complete investigative file originally maintained by the City of Orange Beach, which investigation related to the allegations made by Cherie

Stobert against Anthony Kennon of, among other things, sexual harassment.

4. Please produce originals or true and complete copies of any and all insurance policies, primary and excess, under which any insurance carrier may be liable to satisfy part or all of any judgment which may be entered against you in this action. Pursuant to *Ex parte Badham*, 730 So.2d 135,138 (Ala. 1999). **This request specifically seeks copies of the entire policy or policies including any and all references to policy limits.**



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J. Stephen Legg  
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**TO BE SERVED WITH COMPLAINT.**

**IN THE CIRCUIT COURT OF BALDWIN COUNTY, ALABAMA**  
**CIVIL ACTION NO.: CV-08- 575**

**JIL WALKER,**

**Plaintiff,**

**v.**

**CITY OF ORANGE BEACH, ANTHONY KENNON, et al,**

**Defendants.**

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**NOTICE OF DEPOSITION**

---

**TO:**

Renee Smith, Legal Administrator  
City of Orange Beach  
Post Office Box 458  
Orange Beach, AL 36561  
(251) 981-1126 Fax

Lois Robinson & Associates, Inc.  
Post Office Box 66604  
Mobile, AL 36660  
(251) 479-1874 Fax

**DEPONENT:** Anthony Kennon

**TIME:** T.B.A.

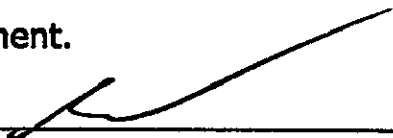
**DATE:** T.B.A.

**LOCATION:** Legg & Meador  
202 South Royal Street  
Mobile, AL 36602

Please take notice that J. STEPHEN LEGG, attorney for Plaintiff, will take the deposition of the deponent named at the time, date and location indicated

above upon oral examination pursuant to the Alabama Rules of Civil Procedure before an officer authorized to take depositions and swear witnesses in the State of Alabama.

The deposition will continue from day to day until completed and you are invited to attend and examine the deponent.



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LEG-003  
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**TO BE SERVED WITH COMPLAINT.**



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| State of Alabama<br>Unified Judicial System<br><br>Form ARCivP-93 Rev. 5/99                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <b>COVER SHEET</b><br><b>CIRCUIT COURT - CIVIL CASE</b><br>(Not For Domestic Relations Cases)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Case Number<br><b>CV 2008 575</b><br>Date of Filing: <b>09 04 2008</b> Judge Code:<br>Month      Day      Year                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>GENERAL INFORMATION</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| IN THE CIRCUIT COURT OF <b>BALDWIN</b> , ALABAMA<br><div style="display: flex; justify-content: space-between;"> <div> <b>JIL WALKER</b><br/>           Plaintiff<br/>           First Plaintiff <input type="checkbox"/> Business <input checked="" type="checkbox"/> Individual<br/>                                    <input type="checkbox"/> Government <input type="checkbox"/> Other         </div> <div style="text-align: center;">           v.         </div> <div> <b>CITY OF ORANGE BEACH, ANTHONY KENNON, et al,</b><br/>           Defendant<br/>           First Defendant <input type="checkbox"/> Business <input checked="" type="checkbox"/> Individual<br/>                                    <input checked="" type="checkbox"/> Government <input type="checkbox"/> Other         </div> </div> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>NATURE OF SUIT:</b> Select primary cause of action, by checking box (check only one) that best characterizes your action:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>TORTS: PERSONAL INJURY</b><br><input type="checkbox"/> WDEA - Wrongful Death<br><input type="checkbox"/> TONG - Negligence: General<br><input type="checkbox"/> TOMV - Negligence: Motor Vehicle<br><input type="checkbox"/> TOWA - Wantonness<br><input type="checkbox"/> TOPL - Product Liability/AEMLD<br><input type="checkbox"/> TOMM - Malpractice-Medical<br><input type="checkbox"/> TOLM - Malpractice-Legal<br><input type="checkbox"/> TOOM - Malpractice-Other<br><input type="checkbox"/> TBFM - Fraud/Bad Faith/Misrepresentation<br><input checked="" type="checkbox"/> TOXX - Other: <u>Defamation, et al</u>                                                                                                                                                                                         | <b>OTHER CIVIL FILINGS (cont'd)</b><br><input type="checkbox"/> MSXX - Birth/Death Certificate Modification/Bond Forfeiture Appeal/ Enforcement of Agency Subpoena/Petition to Preserve<br><input type="checkbox"/> CVRT - Civil Rights<br><input type="checkbox"/> COND - Condemnation/Eminent Domain/Right-of-Way<br><input type="checkbox"/> CTMP - Contempt of Court<br><input type="checkbox"/> CONT - Contract/Ejectment/Writ of Seizure<br><input type="checkbox"/> TOCN - Conversion<br><input type="checkbox"/> EQND - Equity Non-Damages Actions/Declaratory Judgment/Partition Election Contest/Quiet Title/Sale For Division<br><input type="checkbox"/> CVUD - Eviction Appeal/Unlawful Detainer<br><input type="checkbox"/> FORJ - Foreign Judgment<br><input type="checkbox"/> FORF - Fruits of Crime Forfeiture<br><input type="checkbox"/> MSHC - Habeas Corpus/Extraordinary Writ/Mandamus/Prohibition<br><input type="checkbox"/> PFAB - Protection From Abuse<br><input type="checkbox"/> FELA - Railroad/Seaman (FELA)<br><input type="checkbox"/> RPRO - Real Property<br><input type="checkbox"/> WTEG - Will/Trust/Estate/Guardianship/Conservatorship<br><input type="checkbox"/> COMP - Workers' Compensation<br><input type="checkbox"/> CVXX - Miscellaneous Circuit Civil Case | <b>TORTS: PROPERTY INJURY</b><br><input type="checkbox"/> TOPE - Personal Property<br><input type="checkbox"/> TORE - Real Property<br><br><b>OTHER CIVIL FILINGS</b><br><input type="checkbox"/> ABAN - Abandoned Automobile<br><input type="checkbox"/> ACCT - Account & Nonmortgage<br><input type="checkbox"/> APAA - Administrative Agency Appeal<br><input type="checkbox"/> ADPA - Administrative Procedure Act<br><input type="checkbox"/> ANPS - Adults in Need of Protective Services |
| <b>ORIGIN (check one):</b> <input checked="" type="checkbox"/> INITIAL FILING <input type="checkbox"/> REMANDED <input type="checkbox"/> APPEAL FROM DISTRICT COURT <input type="checkbox"/> TRANSFERRED FROM OTHER CIRCUIT COURT <input type="checkbox"/> OTHER: _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>HAS JURY TRIAL BEEN DEMANDED?</b> <input checked="" type="checkbox"/> YES <input type="checkbox"/> NO <small>Note: Checking "Yes" does not constitute a demand for a jury trial. (See Rules 38 and 39, Ala.R.Civ.P. for procedure)</small>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>RELIEF REQUESTED:</b> <input checked="" type="checkbox"/> MONETARY AWARD REQUESTED <input type="checkbox"/> NO MONETARY AWARD REQUESTED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>ATTORNEY CODE:</b> <b>ed003</b> <b>09/04/08</b> _____<br>Date      Signature of Attorney/Party filing this form                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>MEDIATION REQUESTED:</b> <input type="checkbox"/> YES <input type="checkbox"/> NO <input type="checkbox"/> UNDECIDED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

 DISTRICT COURT  
 BALDWIN COUNTY, AL  
 FILED

SEP 04 2008

 JODY W. CAMPBELL  
 CLERK  
 FAIRHOPE

08 SEP 2008